

1.

CASE #	CASE NAME	HEARING NAME
CVME2502941	MAGNANDONOVAN vs NAGHIEH	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

To the extent that the plaintiff may have requested that the Court take judicial notice, that request is denied.

The demurrer to the first amended complaint is overruled as the first and fifth causes of action, sustained with 21 days' leave to amend as to the second and fourth causes of action, and sustained without leave to amend as to the seventh cause of action. The case management conference is continued to September 22, 2026, at 8:30 A.M. in this department.

Analysis:

Judicial notice:

In her Opposition to the instant demurrer, the plaintiff referred to a document attached to her Opposition to the demurrer to original complaint, but did not expressly request that the Court judicially notice that document. (Oppo., p. 6, ll. 20-21.) If that was her intent, that request is denied for the plaintiff's failure to comply with CRC rule 3.1113(l).

First and Fifth:

The Court may consider a demurrer to a cause of action to which a demurrer was previously overruled. (*Carlton v. Dr. Pepper Snapple Group, Inc.* (2014) 228 Cal.App.4th 1200, 1211; *Pacific States Enterprises, Inc. v. City of Coachella* (1993) 13 Cal.App.4th 1414, 1420, f. 3.)

The defendants argue that the first and fifth causes of action fail both because they fail to allege the existence of a contract between the parties and because they fail to allege that the plaintiff has standing to sue to enforce such a contract. That argument fails. The first cause of action alleges that the defendants breached a contract by failing to comply with their obligations under the Architectural Guidelines before performing work in their backyard. The fifth cause of action makes the same claims regarding landscaping in the front and side yards. Paragraph 26 alleges that the Guidelines are part of the governing documents of the HOA and that those documents bind each homeowner to every other homeowner. In the absence of contrary provisions of the CCRs or other governing documents, that is sufficient to allege that the plaintiff has the right to enforce the Guidelines against other homeowners.

Second:

The defendants argue that the second cause of action – for “Damage to Trees and Timber” – fails to state facts sufficient to constitute a cause of action. It appears to be based on Civil Code section 3346 and CCP section 733. However, both sections require a trespass, a nonconsensual entry onto the land of another. No trespass is alleged in the second cause of action. The demurrer is sustained with 21 days’ leave to amend.

Fourth:

The fourth cause of action is one for fraud, but fails to allege the facts necessary to establish fraud by intentional misrepresentation, intentional concealment, negligent misrepresentation, or false promise. Instead, it appears to repeat its contractual claims. The demurrer is sustained with 21 days leave to amend.

Seventh:

Unlike the second cause of action, the seventh cause of action does allege a trespass. However, it appears to merely repeat the allegations of the sixth cause of action. Because it does not allege a cause of action different from that alleged as the sixth cause of action, the demurrer to the seventh cause of action is sustained without leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVME2502941	MAGNANDONOVAN vs NAGHIEH	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

The defendants’ motion to strike is denied as to paragraphs 6 and 7 but granted without leave to amend as to paragraphs 8 through 16, 20, 22, 81 through 87, 94, 96, 100, 102, 131 through 136, 138, 139, 217, and 237.

Analysis:

The factual allegations in the enumerated paragraphs are irrelevant to the claims alleged, are evidentiary facts rather than ultimate facts, or both.